

		In addition, the parties are ordered to file by August 27, 2026 a further executed amendment to the settlement agreement addressing the following issues: 1. The "Released Parties" provision in paragraph 1.40 of the amendment to the settlement agreement remains overbroad as it continues to include unrelated, unidentified and/or ambiguous third parties. The following words should be removed: "attorneys, insurers." 2. Defendant's counsel states counsel's firm has a relationship with the proposed cy pres recipient. Witt Decl. (ROA 118) ¶ 2. In addition, the parties have not demonstrated the propriety of the cy pres recipient and distribution under Civil Procedure Code section 384. The court accordingly agrees with plaintiff's alternative suggestion that any unclaimed funds be distributed to the State Controller's Office in the name of the class member/aggrieved employee. Blakeley Decl. (ROA 124) ¶ 11. The final approval hearing is scheduled for <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
5	Gonzalez v. Network Capital Funding Corporation 2021-01226206	Off calendar.
6	Lawson v. Executive Maintenance, Inc. 2019-01107756	<u>Plaintiff David Lawson's Motion for Attorneys' Fees</u> Plaintiff David Lawson moves for an award of attorneys' fees following the January 14, 2026 judgment (ROA 1004) entered in this matter, in which the court awarded plaintiff and the Meal Period Class \$131,917 in damages and prejudgment interest, plaintiff and the Rest Period Class \$359,015 in damages and prejudgment interest, plaintiff and the Wage Statement Subclass \$70,100 in statutory penalties, plaintiff and the Waiting Time Penalties Subclass \$76,932 in statutory penalties, and plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$282,000 in civil penalties for meal and rest period violations. Plaintiff's counsel seeks an award of \$603,904 in attorneys' fees, based on 1,286.60 claimed hours of attorney and staff work. (Plaintiff withdraws his request for reimbursement for 42.8 hours of these hours in his reply.) Plaintiff also asks that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment. In addition to reading and considering all papers

timely filed in support of and in opposition to the motion, the court exercised its discretion to read and consider defendants' sur-reply (Arabian Decl. (ROA 1079) Ex. B) and sur-declarations (ROA 1095). For the following reasons, plaintiff's motion is granted in part and denied in part.

Plaintiff's second amended complaint alleged nine causes of action (ROA 736), and plaintiff ultimately proceeded to trial on five of them. A court trial lasting less than eight hours was held on December 9 and 10, 2025. For the reasons set forth in the court's oral statement of decision, the court thereafter entered judgment in plaintiff's favor, as set forth above.

In addition to the trial, this litigation included numerous discovery motions and motions to enforce discovery orders, a motion for class certification and a motion for summary judgment/adjudication. The court file contains at least 10 orders compelling defendants to provide discovery and/or sanctioning them for failure to do so. ROA 58, 124, 202, 273, 396, 488, 603, 798, 824, 861. The court file also contains several orders addressing defendants' failure to provide the Class Member Data. E.g., ROA 747, 849. In addition to these orders, the court issued an order on November 3, 2022 granting plaintiff's motion for terminating sanctions and ordering defendant Executive Maintenance, Inc.'s answer stricken (ROA 273), and the court issued an order on November 21, 2024 granting plaintiff's motion for summary adjudication of defendants David Moltz, Patricia May and William May's tenth affirmative defense, in which defendants alleged they were not plaintiff's employer because they allegedly did not exercise control over plaintiff regarding the acts and omissions alleged in the complaint (ROA 695).

Defendants do not dispute that plaintiff is the prevailing party and that plaintiff is entitled to award of reasonable attorneys' fees. See, e.g., Lab. Code §§ 218.5, 2699(k)(1). Defendants' claims that their attorney allegedly did not "keep them informed about what was happening in the lawsuit" and allegedly suffered from "medical issues" throughout this long-running litigation—made in defendants David Moltz, Patricia May and William May's identical sur-declarations (ROA 1095)—does not bar plaintiff from recovering reasonable attorneys' fees as the prevailing party. In addition, defendants' new counsel's statement in counsel's unsigned sur-declaration that defendants' prior counsel did not apprise defendants of "the trial itself" (ROA 1079, ¶ 5) is belied by the fact defendants David Moltz, Patricia May and William May each testified at the trial. ROA 988, 990.

The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. *Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th 1063, 1089; see also *K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425. When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the

reasonable hourly compensation of each attorney. *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; *see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248. The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. *See Northwest Energetic Servs., LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 841, 879-82; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154. The court is not required to impose a multiplier; the decision is discretionary. *Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.

Plaintiff seeks reimbursement for work on this case by five attorneys and several senior paralegals, paralegals, law clerks and case managers. Cordero Decl. (ROA 1031) ¶ 44. The court has read and considered plaintiff's arguments and plaintiff's counsel's declaration, plaintiff's counsel's time records and other evidence, and defendants' arguments and evidentiary objections.

The court finds the following hourly rates reasonable under the circumstances of this case: Attorney Cordero, \$700 per hour; Attorney Reese, \$600 per hour; Attorney Lin, \$550 per hour; Attorney Evans, \$500 per hour; Attorney Schubert, \$500 per hour; Senior Paralegals, \$225 per hour; Paralegals, \$200 per hour; Law Clerks, \$125 per hour; and Case Managers \$100 per hour. Having reviewed and considered plaintiff's and defendants' submissions, and having presided in hundreds of wage-and-hour and PAGA cases, including many applications for awards of attorneys' fees, the court finds these hourly rates reasonable for attorneys in the community who conduct litigation of the same type and under similar circumstances as in this case.

Based on the court's review of plaintiff's counsel's time records, the court finds entries that reflect duplicative and/or excessive work, and numerous administrative and clerical tasks, and does not award fees awarded for that work. For example, plaintiff's counsel's time records reflect duplicative and excessive hours spent by multiple attorneys and other staff members writing, reviewing and conferring regarding pleadings, motion papers and discovery documents, and excessive hours spent on administrative and clerical tasks, including saving documents and emails, "calendar[ing]" meetings, and creating mailing labels.

Applying the above hourly rates and eliminating entries for duplicative and/or excessive work, the court finds the following rates and hours reasonable under the circumstances of this case:

		Attorney Cordero \$700 * 52.5 = \$36,750 Attorney Reese \$600 * 2.3 = \$1,380 Attorney Lin \$550 * 66.0 = \$36,300 Attorney Evans \$500 * 5.1 = \$2,550 Attorney Schubert \$500 * 447.2 = \$223,600 Senior Paralegals \$225 * 83.0 = \$18,675 Paralegals \$200 * 197.0 = \$39,400 Law Clerks \$125 * 107.5 = \$13,437.50 Case Managers \$100 * 5.1 = \$510 Total: \$372,602.50 Plaintiff is awarded \$372,602.50 in attorneys' fees. Plaintiff's request that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment is denied. A court order awarding monetary sanctions is immediately enforceable through the execution of judgment laws. See, e.g., Cal. Civ. Proc. Code §§ 680.230, 680.270 & 699.510; <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615. Plaintiff provides no persuasive explanation why unpaid monetary sanctions should be added to the judgment when orders issuing monetary sanctions are immediately enforceable through the execution of judgment laws. Plaintiff's notice of motion states that plaintiff also seeks "actual litigation costs as outlined in Plaintiff's memorandum of costs previously filed with this Court" (Notice of Motion (ROA 1036) at 2:6-7), but plaintiff does not address this request in his brief (ROA 1027), his counsel's declaration (ROA 1031) or his proposed order (ROA 1025). In his reply, plaintiff states that "[h]e only seeks attorneys' fees through this motion, while the litigation costs are sought through Plaintiff's Memorandum of Costs, filed February 5, 2026." Reply (ROA 1067) at 9:18-19. As the instant motion does not address costs, and as plaintiff states he does not seek costs with this motion, the court need not address them here. Defendants' Evidentiary Objections Nos. 1 through 21 (ROA 1063) to the Cordero Declaration are overruled or were not material to the disposition of the motion. Plaintiff to give notice.
7	Martinez v. Brewery X 2023-01370101	Off calendar.
8	Nguyen v. Baxter Healthcare Corporation	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for